

26STCV06893 26STCV06893

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Division: Civil Law and Motion
Department: 506
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Case Number: 26STCV06893 Hearing Date: August 20, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LEVI ESTATES, LLC,

Plaintiff,

vs.

KASSAHUN NIGUSA, et al.,

Defendants.

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CASE NO.: 26STCV06893

[TENTATIVE] ORDER DENYING MOTION FOR NEW
TRIAL

Dept. 506

8:30 a.m.

August 20, 2026

On

June 18, 2026, a jury returned a verdict in favor of Plaintiff Levi Estates, LLC
and against Defendants Kassahun Nigusa and Iman El Gaddari. The Court entered judgment on June 22, 2026, and
entered an amended judgment on July 6, 2026 to correct the address of the property.

On

July 16, 2026, Defendants filed a motion for a new trial.

DISCUSSION

Plaintiff

argues that Defendants' pending appeal has divested this Court of jurisdiction to
vacate the judgment. (Opposition at pp. 3-4.) Despite Defendants' filing a Notice of Appeal
on June 24, 2026, the Court is unable to locate a pending Court of Appeal case with
this trial court case number or these Defendants as parties.

Plaintiff

also argues that the motion is untimely.
(Opposition at p. 4.) A motion for

new trial must be filed and served within 15 days of the date of mailing notice of entry of judgment by the clerk of the court or service by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest. (Code Civ. Proc., § 659, subd.

(a)(2).) The clerk mailed a Notice of Entry of Judgment to all parties on June 22, 2026.

Accordingly, the deadline for a motion for new trial was July 7, 2026. However, the Court entered an amended judgment on July 6, 2026, and Defendants filed this motion only ten days later. Plaintiff asserts, without authority, that “a clerical correction does not restart the jurisdictional clock for attacking the verdict.” (Opposition at p. 4.) But a new amended judgment was entered; the Court did not interlineate or amend the original judgment nunc pro tunc. An amended judgment is a valid judgment for calculating the timeliness of a motion for new trial.

(See Seeley v. Seymour (1987) 190 Cal.App.3d 844, 855.)

Accordingly,
the Court addresses the motion on the merits.

A
verdict may be vacated and a new trial ordered due to irregularity in the proceedings that prevented a party from having a fair trial, misconduct of the jury, accident or surprise, newly discovered evidence, excessive or inadequate damages, insufficiency of the evidence to justify the verdict, or error in law. (Code Civ. Proc., § 657.)

Defendants

contend that there was an irregularity in the proceedings and an error in law. (Motion at p. 2.) Defendant Nigusa “diligently sought legal representation

well before trial and repeatedly informed the Court that he required additional time to retain counsel and permit counsel to adequately prepare the case,” but “the Court required Defendant to proceed to jury trial without affording retained counsel a reasonable opportunity to prepare.” (Motion

at p. 3.) This resulted in a miscarriage of justice because “the jury never heard several meritorious defenses that likely would have changed the outcome of trial,” such as Plaintiff’s failure to comply with statutory service requirements and the tenancy’s exemption under Civil Code section 1946.2, subdivision (e)(8). (Id. at pp. 3-5.)

Defendants

cite no authority establishing that the Court’s failure to delay the trial for retention of counsel constitutes an irregularity in proceedings or an error in law. “[P]arties are required to include argument and

citation to authority in their briefs, and the absence of these necessary elements allows this court to treat [an] issue as waived.” (Interinsurance Exchange v. Collins (1994) 30 Cal.App.4th 1445, 1448; see also Dabney v. Dabney (2002) 104 Cal.App.4th 379, 384 [“We need not consider an argument for which no authority is furnished.”].) An unlawful detainer action is an expedited proceeding, and Defendants have no right to counsel. (See Code Civ. Proc., § 1170.5.) Defendants appear to merely recycle a motion template from a different case, as Section III is titled, “DUE TO IRREGULARITY IN THE PROCEEDINGS THAT STACEY COLLADO WAS FACED WITH AS A SELF-REPRESENTED PARTY, HER EVIDENCE FOR HER TRIAL NOTEBOOK WAS NEVER ALLOWED TO BE WEIGHED BY THE JURY.”

Defendants

also argue the merits of the validity of the three-day notice and statutory exemption. (Motion at pp. 7-9.) Defendants contend that “[h]ad adequately prepared counsel been permitted to litigate these issues; Defendant[s] would have challenged Plaintiff’s compliance with the statutory prerequisites necessary to maintain this action,” and because Defendants were “denied adequate representation, these issues were never fully litigated.” (Id. at pp. 7-8.) The trial was the time to argue the merits of these issues. Defendants have shown no error in the Court proceeding with the trial while Defendants were self-represented.

CONCLUSION

The

Motion for New Trial is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 20th day
of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court